

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Cheyanne Ralph	Team: Squad #16	CCRB Case #: 201706777	☐ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Wednesday, 08/16/2017 2:52 PM	Location of Incident: 70 White Street	18 Mo. SOL 2/16/2019	Precinct: 05		
Date/Time CV Reported Thu, 08/17/2017 3:18 PM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Thu, 08/17/2017 3:18 PM		

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Francisco Aviles	21271	945484	005 PCT
2. An officer			005 PCT
3. POM Ming yun Cheung	28536	942769	005 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Francisco Aviles	Abuse: Police Officer Francisco Aviles stopped § 87(2)(b)	A . Unsubstantiated
B . POM Ming yun Cheung	Abuse: Police Officer Ming yun Cheung stopped § 87(2)(b)	B . Unsubstantiated
C . POM Ming yun Cheung	Abuse: Police Officer Ming yun Cheung interfered with § 87(2)(b)'s use of a recording device.	C . Unsubstantiated
D . POM Francisco Aviles	Abuse: Police Officer Francisco Aviles searched § 87(2)(b)	D . Unsubstantiated
E . POM Francisco Aviles	Abuse: PO Francisco Aviles threatened § 87(2)(b) with the use of force.	E . Unsubstantiated
F . POM Ming yun Cheung	Discourtesy: Police Officer Ming yun Cheung spoke discourteously to § 87(2)(b)	F . Unsubstantiated
G . An officer	Abuse: An officer threatened to arrest § 87(2)(b)	G . Unsubstantiated
H . POM Ming yun Cheung	Abuse: Police Officer Ming yun Cheung threatened § 87(2)(b) with the use of force.	H . Unsubstantiated
I . POM Ming yun Cheung	Abuse: Police Officer Ming yun Cheung searched § 87(2)(b)	I . Unsubstantiated
J . POM Francisco Aviles	Abuse: Police Officer Francisco Aviles threatened § 87(2)(b) with the use of force.	J . Unsubstantiated
K . POM Francisco Aviles	Abuse: Police Officer Francisco Aviles threatened to arrest an individual.	K . Unsubstantiated
L . POM Ming yun Cheung	Abuse: Police Officer Ming yun Cheung threatened to arrest an individual.	L . Unsubstantiated
M . POM Ming yun Cheung	Abuse: Police Officer Ming yun Cheung searched § 87(2)(b)	M . Unsubstantiated

Officer(s)	Allegation	Investigator Recommendation
§ 87(4-b) § 87(2)(g)		

Case Summary

On August 17, 2017, § 87(2)(b) filed this complaint via telephone with the Civilian Complaint Review Board.

On August 16, 2017, at approximately 2:52 p.m., § 87(2)(b) and § 87(2)(b) were seated next to a pavilion located across from 70 White Street, in in Manhattan, when the following allegations resulted:

PO Francisco Aviles and PO Ming yun Cheung of the 5th Precinct stopped § 87(2)(b) (Allegations A and B). PO Cheung interfered with § 87(2)(b)'s use of a recording device (Allegation C). PO Aviles searched § 87(2)(b) (Allegation D). PO Aviles threatened § 87(2)(b) with the use of force (Allegation E). PO Cheung spoke discourteously towards § 87(2)(b) (Allegation F). An officer threatened to arrest § 87(2)(b) (Allegation G). PO Cheung threatened § 87(2)(b) with the use of force (Allegation H). PO Cheung searched § 87(2)(b) (Allegation I). PO Aviles threatened § 87(2)(b) with the use of force (Allegation J). PO Aviles threatened to arrest § 87(2)(b) (Allegation K). PO Cheung threatened to arrest § 87(2)(b) (Allegation L). It is also alleged that PO Cheung searched § 87(2)(b) (Allegation M).

§ 87(2)(g), § 87(4-b)

Summons # § 87(2)(b) was issued to § 87(2)(b) for the § 87(2)(b) (Board Review 01).

There was no video footage of this incident.

Mediation, Civil and Criminal Histories

- This case was eligible for mediation but mediation was rejected by § 87(2)(b) § 87(2)(b)
- This report was submitted pending the results of any notice of claim filed in regards to this incident submitted via email on December 28, 2017 (Board Review 02).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian and Officer CCRB Histories

- This is the first CCRB complaint filed by § 87(2)(b) (Board Review 05), and the first involving § 87(2)(b) (Board Review 06).

- PO Francisco Aviles has been a member of service for nine years and has had three previous CCRB allegations pleaded against him. None of these allegations were substantiated § 87(2)(g)
- PO Ming yun Cheung has been a member of service for 11 years and this is his first CCRB case.

Findings and Recommendations

Allegation A: Abuse of Authority- Police Officer Francisco Aviles stopped § 87(2)(b)

Allegation B: Abuse of Authority- Police Officer Ming yun Cheung stopped § 87(2)(b)

It is undisputed that § 87(2)(b) was stopped by PO Aviles and PO Cheung.

In his sworn statement to the CCRB (Board Review 07), § 87(2)(b) testified that on August 16, 2017, he was seated on a cement seating area near a pavilion when § 87(2)(b) approached him and they began talking. § 87(2)(b) had not called § 87(2)(b) to the location, and § 87(2)(b) just happened to be in the area. Approximately 5 minutes later, § 87(2)(b) saw a marked patrol vehicle traveling on White Street. When he made eye contact with the officers, PO Aviles, whom he described as a 6'1" tall Hispanic male weighing approximately 200 pounds with a bald head and PO Cheung, whom he described as a 5'10" tall Asian male with short black hair and an average build exited their vehicle. As the officers approached, PO Aviles said that he saw § 87(2)(b) rolling a white paper. When the officers got closer, PO Aviles said that he smelled marijuana. PO Aviles then asked § 87(2)(b) and § 87(2)(b) what they were doing and they both said that they were talking.

§ 87(2)(g)

When § 87(2)(b) saw PO Aviles and PO Cheung approach § 87(2)(b) he voluntarily stepped approximately five feet away so that the officers could speak with § 87(2)(b). One of the officers said, "I think I saw you smoking" to § 87(2)(b). § 87(2)(b) did not know which officer said this and did not know what the officers were referring to because he did not observe § 87(2)(b) smoking or holding anything in his hands. PO Aviles and PO Cheung then continued to ask § 87(2)(b) questions. § 87(2)(b) stated that he assumed the officers were asking § 87(2)(b) questions because he saw them talking. However, he could not hear what specific questions they were asking.

When interviewed at the CCRB, PO Aviles (Board Review 09) could not recall any incident occurring at 70 White Street, in Manhattan and could not recall being at the location on the date in question. He stated that he knew that people smoked marijuana in that area because he has made arrests and issued summonses in that area in the past. PO Aviles could not remember telling § 87(2)(b) that he saw him rolling a white piece of paper, and could not remember hearing PO Cheung make this statement. He stated, "If we were to approach a situation where someone was rolling paper and we did not smell anything, we keep going. If we smell marijuana, we ask 'What are you smoking?' If I smell marijuana when I approach the individual, then we take proper police action. Other than that I would not approach somebody for rolling something." When asked what proper police action was, PO Aviles stated that if the open consumption of marijuana in public is an arrestable misdemeanor.

PO Cheung (Board Review 10) could not recall the incident but stated that he has received numerous narcotics related complaints at the incident location. He stated that he usually drives

around the area at least once during his tour to address any narcotics conditions. PO Cheung stated that when driving by White Street he often smells the odor of marijuana but it is difficult to tell where the odor was coming from. He also could not recall detecting the odor of marijuana at the location on the date in question. PO Cheung could not recall seeing any individual rolling a white piece of paper on the date of incident and stated that if he observed § 87(2)(b) rolling a white paper, he would ask them what they were rolling first because it could be tobacco. He further stated that rolling marijuana is just a violation. Therefore, if the individual admits that they are rolling marijuana they would just be given a summons and the cigarette that they rolled would be confiscated and vouchered.

§ 87(2)(g)

It is therefore recommended that **Allegations A and B** are closed as **Unsubstantiated**.

Allegation C: Abuse of Authority- PO Ming yun Cheung interfered with § 87(2)(b)'s use of a recording device.

§ 87(2)(b) (Board Review 07) testified that when he told PO Cheung and PO Aviles what he was doing at the location, PO Cheung and PO Aviles turned to § 87(2)(b) and asked him what he was doing with § 87(2)(b). § 87(2)(b) replied, "Nothing, just talking to my friend." PO Aviles then immediately instructed § 87(2)(b) to leave. § 87(2)(b) did not ask PO Aviles why he wanted him to leave.

§ 87(2)(b) (Board Review 08) stated that as PO Cheung and PO Aviles approached them he was holding his camera on a tripod but was not recording at that time. As he stood behind the officers and § 87(2)(b) PO Cheung turned around and asked § 87(2)(b) what he was doing at the location. § 87(2)(b) replied, "Nothing, I am just talking to him." PO Cheung said, "What were you talking to him about?" § 87(2)(b) replied, "Talking to him about life." PO Cheung said, "This is not your business," and told § 87(2)(b) to leave. § 87(2)(b) stated to the CCRB that he believed the officers saw his camera, and did not want him to record. PO Aviles did not say anything to § 87(2)(b) and did not look in § 87(2)(b)'s direction. § 87(2)(b) said, "Okay sure," and left the location. § 87(2)(b) did not hear any additional conversation between officers and § 87(2)(b) before he walked away.

PO Aviles (Board Review 09) stated that could not recall telling § 87(2)(b) to leave the location nor could he recall hearing PO Cheung tell § 87(2)(b) to leave the location on the date in question.

PO Cheung (Board Review 10) could not recall directing § 87(2)(b) to leave the location.

§ 87(2)(g)

It is therefore recommended that **Allegation C** is closed as **Unsubstantiated**.

Allegation D: Abuse of Authority- Police Officer Francisco Aviles searched § 87(2)(b)

Once § 87(2)(b) was directed to leave, PO Cheung and PO Aviles asked § 87(2)(b) what he was doing at that the location. PO Aviles then told § 87(2)(b) that he and PO Cheung saw him rolling a marijuana cigarette. § 87(2)(b) replied, “I was not rolling up any weed. I do not have anything because I was talking.” PO Aviles in response told § 87(2)(b) that he must have thrown the marijuana away. § 87(2)(b) replied, “Officer, if you see anything over here, just take me in.” PO Aviles continued to say that he saw § 87(2)(b) with something in his hands. § 87(2)(b) replied, “I don’t have anything. I told you already, search everywhere.” PO Aviles said, “Let me see your pockets.” § 87(2)(b) replied, “I am not trying to open up pockets.” § 87(2)(b) ultimately removed all of the items from his pants pockets.

Neither PO Aviles (Board Review 09) nor PO Cheung (Board Review 10) could recall § 87(2)(b) emptying his pockets.

§ 87(2)(g)

It is therefore recommended that **Allegation D** is closed as **Unsubstantiated**.

Allegation E: Abuse of Authority- Police Officer Francisco Aviles threatened § 87(2)(b) with the use of force.

Allegation F: Abuse of Authority- Police Officer Ming yun Cheung spoke discourteously towards § 87(2)(b)

When § 87(2)(b) refused to show PO Aviles what he had in his pockets, PO Aviles said, “If you don’t do what we want, you know what’s going to happen.” PO Aviles did not say what would happen. § 87(2)(b) was wearing black pants and a white T-shirt and had a black Supreme book bag next to him on his right hand side. § 87(2)(b) in response stood up, shook his shirt out by lifting his boxers up and down from the top, and put his hands up so the officers could see that he did not have anything. § 87(2)(b) then removed all of the items out of his pockets. § 87(2)(b) had his wallet in his front right pants pocket, some hospital papers in his front pants pocket and placed them onto the ground. § 87(2)(b) said, “Look, I don’t have anything in my pockets.” PO Cheung and PO Aviles then began walking around the pavilion; approximately five feet away from § 87(2)(b) as they searched for the marijuana they allegedly saw § 87(2)(b) rolling. When the officers did not see anything on the ground § 87(2)(b) said, “If you know where it is, why don’t you go straight up to it?” PO Cheung replied, “Are you trying to be a smart ass?”

PO Cheung (Board Review 10) stated that he did not say “If you do not open your backpack, you are going to see. We know you have something on you,” and did not hear PO Aviles make this statement. PO Cheung also could not recall using any profanity while speaking with § 87(2)(b) nor could he recall PO Aviles using any profanity. PO Cheung could not recall saying, “Are you trying to be a smart ass?” and did not remember PO Aviles making this statement.

Evans v. Solomon, 681 F. Supp. 2d 233, 2010 U.S. Dist. (Board Review 17) states that the justifications for a search incident to arrest, mainly officer safety and preservation of evidence, do not apply when the individual is not arrested. The search and the arrest must be “contemporaneous with the arrest.”

§ 87(2)(g)

It is therefore recommended that **Allegations E and F** are closed as *Unsubstantiated*.

Allegation G: Abuse of Authority- An officer threatened to arrest § 87(2)(b)

Once PO Cheung and PO Aviles saw that § 87(2)(b) (Board Review 07) did not have anything in his pockets, they requested his ID. PO Aviles just held § 87(2)(b)'s identification in his hand. PO Aviles then said, "What's in that backpack?" § 87(2)(b) replied, "That does not have anything to do with what we are talking about. You said you saw me rolling up. My backpack cannot roll up anything." An officer said, "If you don't tell us what you have in that backpack we are going to lock you up anyway." He could not recall which officer said this. § 87(2)(b) replied, "For what? What would you arrest me for? You were going that way, and you came over here and asked me what I'm doing, and asked the guy the leave. You don't know what we were doing. We are just over here minding our business." It was then PO Cheung removed his asp from its holster.

PO Aviles could not remember telling § 87(2)(b) to open his book bag nor could he remember PO Cheung asking § 87(2)(b) to do so. PO Aviles did not say, "If you don't tell us what's in your backpack, we are going to lock you up anyway," and could not recall hearing PO Cheung say so. PO Aviles could not recall threatening to arrest § 87(2)(b) for any offense.

PO Cheung could not remember asking § 87(2)(b) what was in his book bag and could not recall directing § 87(2)(b) to open his book bag. PO Cheung did not say, "If you don't tell us what's in your book bag, we are going to lock you up anyway."

§ 87(2)(g)

It is therefore recommended that **Allegation G** is closed as *Officer Unidentified*.

Allegation H: Abuse of Authority - Police Officer Ming yung Cheung threatened § 87(2)(b)
with the use of force.

Allegation I: Abuse of Authority- Police Officer Ming yun Cheung searched § 87(2)(b)
§ 87(2)(b) (Board Review 07) testified that when he refused to open his book bag, PO Cheung took out his asp, which he described as an extendable black metal stick. PO Cheung then started waving his asp up and down, approximately eight inches away from § 87(2)(b)'s face and said, "If you don't open the backpack, you are going to see. We know you have something on you." § 87(2)(b) stated to the CCRB that his backpack has two exterior straps. PO Cheung then took his asp and used it to open one exterior strap of the bag.

PO Cheung (Board Review 10) carries a pair of handcuffs, a 9 millimeter firearm, a baton, a radio, OC spray, and a magazine while on duty. PO Cheung could not recall removing his baton

from his belt nor could he remember waving his baton in § 87(2)(b)'s face. PO Cheung also could not remember using his asp to open a strap on § 87(2)(b)'s book bag.

§ 87(2)(g)

It is therefore recommended that **Allegations H and I** are closed as *Unsubstantiated*.

Allegation J: Abuse of Authority - Police Officer Francisco Aviles threatened § 87(2)(b) with the use of force.

Allegation K: Abuse of Authority- Police Officer Francisco Aviles threatened to arrest

§ 87(2)(b)

Allegation L: Abuse of Authority - Police Officer Ming yun Cheung threatened to arrest

§ 87(2)(b)

§ 87(2)(b) (Board Review 07) stated that when PO Cheung used his asp to open one strap of his book bag, an unidentified black male who stood across the street yelled, “Why y’all violating his rights? Just walk away.” § 87(2)(b) did not know this male and stated that he just happened to walk by as this was happening and could not provide any further identifying information. § 87(2)(b) replied, “I can’t walk away. They are going to beat me up.” PO Aviles replied, “Yes, if you don’t do what we asked you to do, we are going to have to do what you just said.” PO Cheung and PO Aviles then told the unidentified black male that if he did not keep walking, he would get arrested as well. The unidentified black male complied and continued walking.

PO Aviles (Board Review 09) also could not recall saying, “If you don’t do what we asked, we are going to do what you just said.” He also could not remember any male pedestrians stopping during this incident and could not remember telling an unidentified black male that if he did not walk away he would be arrested. PO Aviles could not recall threatening § 87(2)(b) with the use of force nor could he recall threatening to arrest any pedestrian

PO Cheung (Board Review 09) could not recall threatening to arrest any black male. He stated that civilians are allowed to watch police interactions from a distance as long as they do not interfere with police action. He stated if he was speaking to § 87(2)(b) and a bystander steps in between them that would be considered interfering with police action. If someone across the street was making remarks while officers were interacting with someone, PO Cheung would ignore them.

§ 87(2)(g)

It is therefore recommended that **Allegations J-L** are closed as *Unsubstantiated*.

Allegation M: Abuse of Authority - Police Officer Ming yun Cheung searched § 87(2)(b)

It is undisputed that § 87(2)(b) was in possession of marijuana. § 87(2)(g)

Once the unidentified black male walked away, § 87(2)(b) (Board Review 07) stood up and said, “Why are you trying to violate my rights. You are really trying to get something out of me. Just go ahead. Do what you gotta do, because y’all know y’all are not doing this right.” § 87(2)(b) then opened the flap of the main compartment of his book bag and said, “Look I don’t have anything.” PO Cheung then said, “It’s open,” as he pulled the drawstring open, and placed his hand inside the main compartment of § 87(2)(b)’s book bag. § 87(2)(b) stated to the CCRB that when PO Cheung opened the drawstring of his bag, he did not object to him going further into his bag because PO Cheung still had the metal stick in his opposite hand during this time. Once PO Cheung opened the drawstring of § 87(2)(b)’s book bag he immediately placed his hand inside the main compartment and pulled out a white smell proof bag, which was at the top of his bag. PO Cheung did not take any additional actions to recover the marijuana. § 87(2)(b) stated to the CCRB that although there are two interior pockets inside his book bag, the marijuana was in the main compartment and it was the first thing and the only thing PO Cheung grabbed. PO Cheung said, “What’s inside?” PO Cheung then smelled the bag and continued to ask § 87(2)(b) approximately three times what was inside. § 87(2)(b) did not answer PO Cheung and just stared at the officers. PO Aviles said, “Let me see what you got there,” and took the bag from PO Cheung. PO Aviles then opened the white bag and said, “See I told you that you had weed on you.” § 87(2)(b) replied, “I smoke weed because I have a lot of stress, but I am not smoking it here,” and “You assumed that I was rolling up. This is not rolling up. That was not in my hand. That was in the backpack. Do you think you are doing the right thing right now?” The officers then confiscated the marijuana and told § 87(2)(b) that the best they could do for him was issue him a summons.

PO Aviles (Board Review 09) denied seeing PO Cheung place his hand inside of § 87(2)(b)’s bookbag. PO Aviles reviewed summons #§ 87(2)(b) issued to § 87(2)(b) for § 87(2)(b) and confirmed he wrote the summons, but it did not aid his recollection of any incident. He stated if the interaction was negative, he would have remembered it. PO Aviles could not recall where the marijuana was recovered from, but stated that more than likely the marijuana was packaged in a small Ziploc bag, and the Ziploc bag was more than likely see through. However, he could not recall specifically seeing the Ziploc bags on the date in question. PO Aviles also could not recall if he observed the marijuana himself or was informed of this by PO Cheung.

§ 87(2)(g), § 87(4-b)

[Redacted text block containing multiple lines of blacked-out information]

Squad: 16

Investigator:	_____	_____	_____
	Signature	Print	Date
Squad Leader:	_____	_____	_____
	Title/Signature	Print	Date
Reviewer:	_____	_____	_____
	Title/Signature	Print	Date